

	TITLE: Equal Employment Opportunity and Non-Harassment	
	DATE CREATED: 01/01/2011	VERSION NUMBER: 4
	DATE OF LAST REVIEW: 10/29/2020	DEPARTMENT OWNER: Human Resources – Employee Relations

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1. Purpose

To set forth the Premier, Inc. (the “Company”) policy against unlawful discrimination and harassment and to establish guidelines for handling reports related to potential discrimination or harassment.

2. Scope

This policy governs all Premier activities and locations and applies to all Premier employees. This policy also applies to all incidents of alleged discrimination or harassment, including those that occur off premises or off work hours related to Premier business, and regardless of whether the alleged offender is a supervisor or a co-worker. This policy further applies to non-employees with whom employees are involved in business dealings for or on behalf of Premier. However, nothing in this policy is intended to nor does it in any way impose any additional liabilities, requirements or obligations on Premier beyond those liabilities, requirements and obligations imposed by applicable law.

3. Attachments/References

3.9 Disability Accommodation

POLICY

1. Equal Employment Opportunity

Premier is an equal employment opportunity/affirmative action employer. It is Premier’s policy to provide equal employment opportunity to all qualified employees and applicants for employment without regard to unlawful consideration of race, color, religion, sex, national origin, ancestry, citizenship status, age, disability, covered military or veteran status, uniformed service, sexual orientation, gender identity, gender expression, marital status, familial status, pregnancy status, genetic information, or any other status protected by applicable federal, state or local law. We also consider qualified applicants with criminal histories, consistent with applicable federal, state and local law. This policy applies to all terms and conditions of employment including, but not limited to, recruitment, hiring, placement, promotion, training, discipline, termination, layoff, recall, transfer, leaves of absence, compensation and benefits.

In addition to the above, in some circumstances, if an employee is pregnant or the victim of domestic violence, they may have a right to a reasonable accommodation if, among other things, the accommodation does not impose an undue hardship on the Company. See also the Company’s American’s With Disabilities Act Policy with respect to reasonable accommodations potentially available to qualified disabled applicants and employees.

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2. Non-Harassment

Premier's policy is that all employees and other persons on Premier premises or performing Premier business shall conduct themselves in a professional and businesslike manner at all times. Premier expressly prohibits any form of employee intimidation or harassment based on race, color, religion, sex, national origin, ancestry, citizenship status, age, disability, covered military or veteran status, uniformed service, sexual orientation, gender identity, gender expression, marital status, familial status, pregnancy status, genetic information, or any other status protected by applicable federal, state or local law. The Company prohibits such harassment by all employees and others associated with Premier. Harassment of employees in connection with their work by non-employees may also be a violation of this policy, and the Company does not condone such conduct by business partners, clients, vendors, or other third parties with whom the Company has business dealings. Further, harassment of business partners, clients, vendors, or other third parties by our employees is also prohibited.

Simply put, improper interference with the ability of employees to perform their expected job duties will not be tolerated. Harassment may include, but is not limited to:

- A. Unwelcome verbal, written or physical conduct that denigrates or shows hostility or aversion toward an individual because of his or her race, color, religion, sex, national origin, ancestry, citizenship status, age, disability, covered military or veteran status, uniformed service, sexual orientation, gender identity, gender expression, marital status, familial status, pregnancy status, genetic information, or any other status protected by applicable federal, state or local law, or that of an individual's relatives, friends or associates;
- B. Unwelcome derogatory comments, epithets, insults, jokes, innuendoes, insults, slurs, negative stereotyping, or threatening, intimidating or hostile acts or other similar conduct that relate to race, color, religion, sex, national origin, ancestry, citizenship status, age, disability, covered military or veteran status, uniformed service, sexual orientation, gender identity, gender expression, marital status, familial status, pregnancy status, genetic information, or any other status protected by applicable federal, state or local law;
- C. The placement, dissemination or circulation to employee(s) and/or in the workplace of any written or graphic material (in hard copy or electronic form) that denigrates or shows hostility or aversion toward an individual or group because of race, color, religion, sex, national origin, ancestry, citizenship status, age, disability, covered military or veteran status, uniformed service, sexual orientation, gender identity, gender expression, marital status, familial status, pregnancy status, genetic information, or any other status protected by applicable federal, state or local law.

Harassment may also include unwelcome sexual advances, unwelcome requests for sexual favors and other unwelcome conduct of a sexual nature if:

- 1) Submission to or tolerance of such conduct is made either an explicit or implicit condition of employment;
- 2) Submission to or tolerance or rejection of such conduct is used as a basis for an employment decision affecting an employee;
- 3) The conduct has the purpose or effect of substantially interfering with an employee's performance;
- 4) The conduct creates an intimidating, hostile or offensive work environment.

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If an employee has welcomed sexual advances or other harassing conduct (whether sexual or otherwise) by active participation in or encouragement of such activity, he or she should specifically inform the alleged harasser if such conduct is no longer welcome in order for any subsequent conduct to be deemed unwelcome. However, failure to give such notice in no way prevents the Company from taking appropriate disciplinary action against the alleged harasser for his or her behavior.

Further examples of the types of conduct expressly prohibited by this policy include, but are not limited to, the following:

- Sexually-suggestive touching, including rubbing or massaging an individual's neck or shoulders, stroking an individual's hair, or brushing against an individual's body.
- Grabbing, groping, pinching, kissing or fondling.
- Lewd, vulgar, off-color or sexually oriented comments or jokes.
- Jokes or offensive comments based on race, religion, ethnicity, or other protected categories.
- Foul or obscene language.
- Leering, staring or stalking.
- Suggestive or sexually explicit posters, calendars, photographs, graffiti or cartoons.
- Unwanted or offensive letters or poems.
- Inappropriate, sexual or insulting gestures or sounds.
- Offensive e-mails, voice-mails or instant messaging.
- Sexually oriented or explicit remarks, including written or oral references to sexual conduct or gossip regarding an individual's or an employee's own sex life, body, or sexual activities.
- Questions about an individual's sex life or experiences.
- Repeated requests for dates.
- Sexual favors in return for employment rewards, or threats if sexual favors are not provided.

Although illustrative, the above summary of prohibited behavior is not meant to be all-inclusive. Any form of inappropriate discriminatory, intimidating, bullying, or harassing behavior by employees or other individuals connected with Premier (whether unlawful or not) may subject such individuals to disciplinary or other appropriate action, up to and including termination.

3. Reporting Concerns

Employee Reports

Any employee who believes that he or she has been subjected to inappropriate behavior that violates this policy must promptly report the matter to his or her supervisor and/or Human Resources. If an employee reports the matter to his or her supervisor, the supervisor will in turn report the matter immediately to Human Resources- Employee Relations. You can report a matter by reaching out directly to the Employee Relations Team or using the HR Consulting-Confidential mailbox.

It is important to understand that there is no need for any employee to follow a formal chain of command when reporting, discussing or expressing any issue or concern regarding alleged discrimination or harassment. (i.e., There is no requirement that an employee speak to his or her supervisor first). Indeed, employees may bypass their supervisor(s) or anyone else in their direct chain of command and report, discuss or express any issue or concern with Human Resources at any time.

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Reporting By Other Employees

Any employee who believes that another employee is being subjected to unlawful discrimination or harassment must promptly report such conduct to his or her supervisor and/or Human Resources - Employee Relations. In addition, any employee receiving a report regarding potentially unlawful discrimination or harassment must immediately inform Human Resources. You can report a matter by reaching out directly to the Employee Relations Team or using the HR Consulting-Confidential mailbox.

Alternative Reporting Options

Employees may report unlawful discrimination or harassment through Premier's WorkSmart Integrity HelpLine at worksmartpremier.com or by calling 800.254.5762. If you prefer, you can text your report to 803.573.9656. This is a confidential, third-party reporting portal available 24 hours a day, seven days a week for employees to voice their concerns or report suspected criminal or illegal activity, unethical behavior or misconduct without fear of retaliation.

4. Investigative Process

All reports received under this policy will be reviewed and/or investigated as deemed appropriate by the Company, and appropriate action will be taken to address the matter where warranted. During the investigative process, information will be shared only on a need to know basis so as to be sensitive to the privacy concerns of all employees involved, consistent with the need to conduct an adequate investigation. To the extent practical, the Company will keep complaints, investigative records, and the results of the investigation confidential.

All employees raising a complaint and all persons accused of violating this policy shall fully cooperate with any investigation, including supplying written statements if requested. In addition, all other persons associated with the Company shall fully cooperate with any such investigation if and to the extent requested.

5. Protection Against Retaliation

Premier expressly prohibits any form of retaliatory action against any employee for filing a bona fide, good faith report or concern to Human Resources or management under this policy or for assisting in a complaint investigation. Retaliation is itself a separate, serious violation of this policy and should be reported in the same manner as a complaint of discrimination, harassment or other compliance violation. Any attempt to coerce, intimidate or retaliate against anyone who in good faith complains of a violation of this policy or who in good faith participates in an investigation under this policy will not be tolerated. If Premier determines that retaliation has occurred, the Company will take appropriate disciplinary action, up to and including termination.

6. False Accusations and Information

The Company recognizes that false accusations under this policy and the providing of false information in an investigation can have a serious effect on innocent persons. Thus, although the Company encourages the good faith reporting of unwelcome conduct perceived to be a violation of this policy, if the Company determines that a person has provided false information in making a complaint or as part of an investigation under this policy in bad faith, appropriate corrective action may be taken against the individual(s) who provided such information, up to and including termination.